



File No.: EXP202212248

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 7, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against B.B.B. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202212248

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST:

A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 2, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent school or educational center). The reasons on which the complaint is based are as follows: The complainant states that their minor child is enrolled in the complained Center and that, upon starting the X Primary course, the use of a Chromebook device is established, which must be purchased by the parents for use in the classroom.

It is noted that both the device and the license are acquired by the parents of the minors, thus they are their property, although it is stated that they have not received any information regarding the collection and processing of data on the Chromebook due to the enrollment of said device in the school's domain and that they have not signed any authorization.

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Furthermore, it is highlighted that both the permission for sending optional data to GOOGLE and other permissions associated with applications preconfigured by the Center (use of the camera, location, microphone, storage) remain active, without the parents or guardians of the students, as responsible for the device, being able to revoke any of these permissions.

On September 14, 2022, the complainant contacted their child's tutor to obtain information regarding this matter. On September 21, they received an email stating: "[...] The configurations established for the school-use apps and for the student profile are indeed managed by the School for their correct functioning and to avoid problems. There is no other way to do this, as there are functions that must be enabled for the application to work.

These configurations only work from the student profile ***PROFILE.1. If they log in from another profile or as guests, they can configure the privacy of the profile they enter at will.[...]"

Not being satisfied with this response, on September 22, 2022, the complainant sent a communication to the DPO of the School requesting more information, without having received a response.

Along with the complaint, they provide:

A copy of the communications exchanged with the Center.

Several screenshots showing:

- Configuration of the operating system. The permission called "Help improve the functions and performance of ChromeOS" is activated with the following description: "Automatically sends reports about failures, as well as diagnostic and usage data to Google."
- Permissions granted to the application "Grupo Anaya": location, camera, microphone, contacts, and storage, with no possibility of being deactivated, as they are shaded.

- Permissions granted to the application "Kahoot!" (camera and storage), with no possibility of being deactivated, as they are shaded.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the Vera-Cruz School, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations

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Public (hereinafter, LPACAP), was received on 21/11/2022 as evidenced by the acknowledgment of receipt in the file.

On 19/12/2022, this Agency received a written response indicating, in summary, the following:

The School highlights that, since September 14, 2022 (the date on which the complainant sent an email to their child's tutor expressing a series of concerns), they have maintained various communications with the complainant, both in person and via email, in order to inform them of the inquiries and activities carried out by the educational institution.

1. Regarding the Chromebook-type device, the parents of the students purchase these devices from Edelvives, personally enabling both the device and the operating system license.

The aforementioned devices have the Google operating system installed based on the CHROME browser.

The school has contracted with Google, for the use of its students, Google Workspace for Education, in the version called Google Workspace for Education Fundamentals, which provides tools and services from Google that facilitate teaching and learning, such as Classroom, Google Meet, Google Docs, Google Forms, and Google Chat. The tool incurs no economic cost for the school or the students.

The School acts as the data controller and Google as the data processor.

Regarding the default configuration of the operating system, the School states that it cannot act in this area, as it is part of the configuration of the device's own system.

Student registrations on the Google for Education platform are made with an account created for the student by the school. This account allows students to access the platform, benefit from the services, and access the installed applications.

They understand that the information Google may obtain is merely statistical.

They emphasize that if consent were necessary for such data collection, it would have been requested and obtained upon starting the device or the operating system by the data subject.

The school states that it does not collect data on the use of the platform by the students.

2. Along with the device and the Google operating system, the parents of the students purchase a parental control application called IRIS from Edelvives.

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This application allows the teacher in the classroom to pause screens, block access to the Internet, and deactivate the Internet filter of all students' devices in real-time.

The IRIS application allows for internet filtering, geolocation of the device in case of loss or theft. It also allows parents to control the usage and rest times of the device and the videos viewed. This application collects geolocation data, the history of IPs from which it has connected, and browsing history.

3. Regarding educational applications, the School informs that it acquires digital licenses (books) and distributes them among the families of the students, who pay for them to the educational institution. The applications from the publisher Edelvives were not functioning correctly and have not been used. The students of the school connect to the digital books, digital licenses, via the Internet. In the course of the student whose father has filed the complaint, there are two licenses from Edelvives and one from Mac Millan. The two licenses from Edelvives were purchased by the parents of the students along with the device and the IRIS application through the Edelvives website and allow downloading content and accessing it offline.

The Anaya application is not used in primary education, was installed by default, and has not been used. The student could not access it, as they did not have books from that publisher.

Access to the digital content of Edelvives or Anaya (in the case of Secondary students) only allows for the viewing of digital content, without being used for other purposes, such as communication with students.

Due to its limited use, the School has deactivated the Kahoot application.

The School has contacted various publishers, initially to request information and subsequently to make changes to the configurations.

The educational institution understands that the complaint filed does not constitute an incident. They believe that no harm has occurred to the integrity, confidentiality, or availability of personal data.

They conclude their writing by requesting the filing of the initiated proceedings, understanding that the personal data protection regulations have not been violated.

THIRD: On January 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and of

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in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

Below, various aspects reflected in the preliminary investigation report dated November 3, 2023, will be reproduced:

1.

(...):

The preliminary investigation report makes several references to the acquisition of the Chromebook device by the parents of the students, its implementation at the school, and that it is enrolled in the school's domain:

“The complainant states that their child, a minor, is enrolled in the claimed Center and that, upon starting the X grade of Primary Education, the use of a Chromebook device is established, which must be acquired by the parents, to be used in the classroom. It indicates that both the device and the license are purchased by the parents of the minors, making it their property (...)” (the underlining is ours).

“In the context of procedure AT/04916/2022 and as a consequence of the transfer made by the Data Inspection Subdirectorate, dated 12/23/2022, B.B.B. sends the following information and statements to this Agency:

1. That the parents of the students enrolled in the center acquire a Chromebook-type device from EDELVIVES along with the operating system, GOOGLE license, and the parental control application IRIS. These devices have the GOOGLE operating system installed based on the Chrome browser” (the underlining is ours).

“As a result of the information request made by the inspection, dated 07/31/2023, B.B.B. sends the

following information and statements to this agency:

1. That the information to the parents is provided at the beginning of the school year in informational talks and is also sent by email to all of them. A copy of the email sent from the email address

***EMAIL.1 on 06/21/2023 with the subject "Circular CHROMEBOOK/CHROMEBOOK Zirkularra" is provided, where the recipient is not specified. The following aspects are noted:

a. Regarding the purchase of the devices:

"[...] To facilitate the management of the purchase of the devices, families may carry it out directly through our website: www.colegioveracruz.com or through the following URL [...]

In case any family wishes to acquire or work with a Chromebook outside of this offer, know that you have that possibility.

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To do this, keep in mind that the minimum requirements would be 4 GB RAM and 32 GB Disk, and that you may also need to acquire through the Edelvives platform the necessary Google license for the operation of the Chromebook under the structure colegioveracruz.com. If any family decides to work with another laptop that is not a Chromebook, know that it would not be enrolled in the school's structure with the limitations that this entails. [...]"

b.

Regarding the management of the devices, the licenses, and the role of the school.

"[...] We recommend that, once you pick up the Chromebook on the first day, you only unpack it to check that it has arrived in perfect condition. We will carry out its setup in the classroom alongside the teaching staff." (the underlining is ours).

"In relation to the purchase and configuration process of the Chromebook devices and licenses, it states:

2. That parents can acquire the device on their own, but most opt to buy it through the school. That the purchase of the device and the usage licenses is carried out by the families themselves on a platform owned by Edelvives.

3. That information is published at the link ***URL.1, as well as the purchase conditions.

4. That the school is unrelated to the commercial relationship established between the families and Edelvives.

5. That the device arrives at the homes of the families who acquire it with a Google For Education license installed (...)." (the underlining is ours).

2.

(...):

In the preliminary investigation report, based on information published on the internet by Google and according to statements made by the school, it indicates:

"Google Workspace for Education is a set of tools and services from Google designed for schools and homeschooling to collaborate, streamline instruction, and maintain safe learning. Google Workspace for Education Fundamentals: provides tools to assist in teaching and learning, such as Classroom, Google Meet, Google Docs, Google Forms, and Google Chat.

Google Workspace for Education includes core services (Gmail, Calendar, Classroom, Assignments, Contacts, Drive, Docs, Forms, Groups, Sheets, Sites, Slides, Chat, Meet, Vault, and Chrome Sync) and services

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additional (Google Search, Maps, and YouTube), although the latter are also generally provided to all

Google users.

Google Workspace provides access to the Admin Console through which various actions can be taken by the administrator, such as:

- a. Control over the devices enrolled in the school domain. (Enrollment means associating the device with the school to manage it.) According to the school, management occurs only during school hours.
- b. Managing access to core services, additional services, or the installation of third-party applications from Google Marketplace on users' devices. For example, applications can be forced to install on users' devices, and in this case, the school had some applications configured for forced installation. The school has contracted Google Workspace for Education and created Google accounts for the students.

Parents acquire the Chromebook devices from EDELVIVES.

(...)

At the beginning of the school year, the school enrolls the Chromebooks in the school's domain and installs the corresponding educational licenses for each student.

The user can create additional independent accounts on the Chromebook that are not managed by the school.

It is possible for families to work with devices that are not Chromebooks, but this would mean that the device would not be enrolled in the school's domain and would entail certain limitations, which have not been specified.

The school informed families via an email sent (letter). The letter included instructions and links to the privacy policies of some application providers, as well as a reference to the privacy policy of Edelvives. (...) (the underlining is ours).

The preliminary investigation report dated November 3, 2023 reproduces in section 4 (pages 22 and following) part of the content of the document titled "Google Workspace for Education Terms of Service" (contract for Google Workspace for Education), which is also referenced in section 6 (page 23). The referred document, in its Spanish version, has been reproduced in the Diligence of June 7, 2023, and in its English version, in the Diligence of July 13, 2023.

3.

(...)

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In this regard, the preliminary investigation report highlights:

"1. The school is responsible for the processing due to the contracting of Google Workspace for Education. GOOGLE is the data processor. The data processed are Customer Data and Service Data.

2. According to statements from the school and information published by GOOGLE on the internet, the latter is a data processor in relation to Google Workspace for Education, and the school is responsible for the processing.

3. According to statements from the school, (...) it states that the data is processed for the purpose of managing the school and academic tracking, without being used for other purposes on the educational platform." (the underlining is ours).

The preliminary investigation report dated November 3, 2023 in section 3 (pages 19 and following) reproduces part of the content of the document titled "Cloud Data Processing Addendum," data processing agreement, the content of which in its English version has been reproduced in the Diligence of June 7, 2023.

4.

(...)

The preliminary investigation report contains the following information:

"4. According to the documentation that GOOGLE maintains published on the internet:

- a. In Google Workspace there are "Core Services," "Additional Services," as well as "Third-Party

Services," although only the core services are governed by the terms of Google Workspace. In the core services, data is processed, among others, location, type of browser and device, unique identifiers, operating system, interactions with applications and browsers, IP address, error reports, system activity.

In the additional services, data is processed, among others, IP address, GPS, information about things near the user such as Wi-Fi access points and Bluetooth devices, search terms, the videos viewed, advertisements viewed by the user and with which they interact, type of browser and device, unique identifiers, operating system, interactions of applications and browsers with GOOGLE services, error reports, system activity.

b. In the "Core Services," there is no advertising of any kind, nor is any personal data collected used for advertising purposes.

c. YouTube is an additional service, which, as such an additional service, may involve the sending of non-personalized advertising based on factors.

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"general" such as searches performed or the content of a page being read.

d. According to the "Terms of Service of Google Workspace for Education," the client is responsible for obtaining the necessary consents and providing the required notices. Specifically, regarding the use of "Additional Products" and "Third-Party Offers," the client must obtain parental consent for users under 18 years of age as required by applicable law. Similarly, ***URL.2 emphasizes that parents must obtain consent for the use of additional services in the case of minors under 18 years of age."

5.

(...)

:

In relation to this issue, the preliminary investigation report, reflecting information obtained from Google's website (diligence dated July 13, 2023) as well as statements made by the school, indicates in its conclusions:

"ChromeOS is the operating system for Chromebook devices.

1. Reports of failures, which are activated when the option to "Help improve the features and performance of ChromeOS" is enabled, sent to GOOGLE, include information such as memory data related to the crash, such as the content of the pages, your payment data and passwords, Chrome settings, the extensions you have installed, the website you were visiting at the time of the crash, the operating system, the manufacturer and model of your device, the country where you are using Chrome.

2. Usage statistics and failure reports are sent to Google by default to help them improve their products.

3. Although initially the school stated that it could not change this setting, subsequently, according to the protocol provided by the school and screenshots, the option for this information to be sent has been disabled. However, it has not been confirmed that the configurations implemented by the school have had an effect on the Chromebooks aimed at resolving what is shown in the screenshot provided by the complainant.

4. The school has not assessed, as requested, the necessity of having this option enabled as indicated in the screenshot provided by the complainant." (the underlining is ours).

6.

(...)

:

In the preliminary investigation report, it is indicated:

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"In the context of procedure AT/04916/2022 and as a result of the transfer made by the Data Inspection Subdirectorate, on 23/12/2022 B.B.B. sends the following information and statements to this Agency:

(...)

2. Regarding educational licenses, the school acquires these licenses and distributes them to families who pay the school.

There are also 2 licenses from EDELVIVES for fourth-grade primary students and 1 license from MAC MILLAN for English for all students, which are purchased online by the parents."

"As a result of the information request made by the inspection, on 31/07/2023, B.B.B. sends the following information and statements to this agency:

1. That the information to parents is provided at the beginning of the school year in informational talks and also sent by email to all of them.

A copy of the email sent from the email address ***EMAIL.1 on June 21, 2023, with the subject "Circular CHROMEBOOK/CHROMEBOOK Zirkularra" is provided, where the recipient is not specified.

The following aspects are noted:

(...)

Digital licenses:

Regarding digital licenses, all will be managed by the school, and the corresponding amount will be charged to your account throughout the course, except in the following cases:

X of primary: families must purchase a license corresponding to the subjects of Language (Fanfest) through the Edelvives platform.

X, 5th and 6th of primary: families must purchase the English license from Millan (Kids can!) (the underlining is ours).

7.

(...)

:

It is analyzed in several sections of the preliminary investigation report, and the following should be highlighted:

"The complainant states that their child, a minor, is enrolled in the complained center and that, upon starting the X Primary course, the use of a Chromebook device is established, which must be purchased by the parents for use in the classroom. They indicate that both the device and the license are purchased by the parents of the minors, so it is their property, although they state that they have not received information

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any information regarding the collection and processing of data on the Chromebook due to the enrollment of said device in the school's domain. They also state that they have not signed any authorization.

Furthermore, both the permission for sending optional data to GOOGLE and other permissions associated with applications preconfigured by the Center remain active, which have active permissions for the use of the camera, location, microphone without the ability for parents or guardians of the students, as responsible for the device, to revoke any of those permissions." (the underlining is ours).

"In the context of procedure AT/04916/2022 and as a consequence of the transfer made by the Subdirectorate of Data Inspection, on 23/12/2022 B.B.B. sends the following information and statements to this Agency:

(...)

9. Regarding educational applications, the center acquires digital licenses (books) and distributes them to families who pay for them at the center.

a. Regarding the ANAYA application, it has not been used in the primary stage. The application was installed by default. The installed version does not work correctly and it has been uninstalled to install an updated version.

b. Regarding the applications from the EDELVIVES publisher, it has also not been used due to not functioning correctly, pending the publisher to send an update.

c. For the moment, students connect to digital books via the internet.

d. The fact that these applications allow students to activate the camera, microphone, location, or storage would allow the student to open, if required, those tools on their device to enable communication with the center or the submission of schoolwork, but in no way allows the center to activate them remotely.

10. They have deactivated the KAHOOT application due to its limited use.” (the underlining is ours).

8.

(...)

In relation to this issue, the report of preliminary investigation actions states:

“The complainant states that their child, a minor, is enrolled in the claimed Center and that, upon starting the X course in Primary, the use of a Chromebook device is established, which must be purchased by the parents for use in the classroom. It indicates that both the device and the license are purchased by the parents of the minors, so it is their property, although it states that they have not received any information regarding the collection and processing of data on the Chromebook due to the enrollment of said device in the school's domain. They also state that they have not signed any authorization.

Furthermore, both the permission for sending optional data to GOOGLE and other permissions associated with applications preconfigured by the Center remain active, which have active permissions for the use of the camera, location, microphone without the ability for parents or guardians of the students, as responsible for the device, to revoke any of those permissions.” (the underlining is ours).

In the conclusions of said report, it is highlighted:

“2. The school has activated the additional Youtube service for student use, although with restricted access to videos.

3. The school has configured for students the forced installation of a list of third-party applications (...)

4. Access to device resources by Android applications (such as SM Aprendizaje, Edelvives Digital Plus, Aula Virtual Santillana, CGA Visor Anaya) is established in the application and cannot be modified from the console. They understand that access to resources such as the camera or microphone is always necessary.” (the underlining is ours).

9.

(...)

In the conclusions of the report of preliminary investigation actions, it is indicated:

“6. In the privacy policy of “Kahoot,” it states that they automatically collect data from the MAC address of the device, as well as the IP address and data about screen resolution, operating system, browser, among other data, even if it concerns minors. This application has been used in the past, although it has already been uninstalled.

7. In the case of the use of the “Kahoot” application in the past, the school admits not having followed its application validation protocol.

8. In the privacy policy of Santillana, provided to families, it states that they collect data that may allow identifying the user or making them identifiable. It also states that minors under 14 years old should not use their services without parental or guardian consent. The Aula Virtual Santillana application is installed on the students' Chromebooks.

9. In the privacy policy of “SM Aprendizaje,” provided to families, it states that they collect data from students and parents such as identifying, contact, academic data, etc. They also carry out processing of the...

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information derived from navigation, use, and enjoyment of SM contents.

Data obtained from external sources may also be processed. (...)

10. Regarding the CGA Grupo Anaya app, it is currently blocked for students.

It provides a contract on data protection solely in relation to confidentiality and is dated 06/10/2023.

According to a statement from GRUPO ANAYA sent by the school, the CGA Grupo Anaya application does not process personal data. However, the school does not justify the permission that this application has for the use of the camera and microphone of the Chromebooks.

11. The privacy policy of EDELVIVES, provided to families, refers to the website ***URL.3, not to the application. It is verified that the app “+EDELVIVES” redirects to the webpage ***URL.4 whose privacy policy requires obtaining consent from parents for the use of the platform by minors. It is also noted that they process identifying and contact data, among others.

(...) (the underlining is ours).

10.

(...)

:

The report of prior investigative actions highlights in its conclusions:

“1. Regarding consent and the information provided to students and parents concerning the installation of the apps “CGA Anaya” and “Kahoot” on students' Chromebooks, the school states that it is not the responsibility of the school to provide this information but rather of the entities responsible for those apps.

(...)

3. The school has configured the forced installation of a list of third-party applications for students, for which it has not accredited how it has provided information on data protection to the parents/students nor how it has collected the consents for their installation or for access to the resources of the device of those applications.

(...)

5. Justification has not been obtained for each application regarding the permissions for access to device resources that have been granted by the school.

(...)

8. In the privacy policy of Santillana, provided to families, it states that they collect data that may allow identifying the user or making them identifiable. It also states that minors under 14 years old should not use their services without the consent of parents or guardians. The Santillana Virtual Classroom application is installed on the students' Chromebooks.

9. In the privacy policy of “SM Aprendizaje,” provided to families, it states that they collect data from students and parents such as identifying data, contact data, academic data, etc. They also carry out processing of information derived from navigation, use, and enjoyment of SM contents. Data obtained from external sources may also be processed. (...)

The application “SM Aprendizaje” is installed with permission from the students on the Chromebooks.

11. The privacy policy of EDELVIVES, provided to families, refers to the website ***URL.3, not to the application. It is verified that the app “+EDELVIVES” redirects to the webpage ***URL.5 whose privacy policy requires obtaining consent from parents for the use of the platform by minors. It is also noted that they process identifying and contact data, among others.

However, in the legal notice of ***URL.5, it states that the use of the platform by minors is not permitted.” (the underlining is ours).

Furthermore, in these conclusions, it is indicated:

“(...).

1. Regarding Google Workspace and the Google user account opened by the school, there is evidence, according to the documentation from Google located at ***URL.6, that the user is provided

with a note with “important information” when they log in to their managed Google account. The content of this note is unknown and has not been provided by the school nor has it referred to it. This article in turn refers to information on data protection, although only related to service data.

The information on data protection concerning Google Workspace is located at ***URL.7, but it is not stated how this information has been provided by the school to the families.

2. The only information that is recorded as transmitted to families by the school is the letter referred to. In this letter, reference is made to privacy policies exclusively through a link, and it does not contain privacy information about Google Workspace or about some applications used by the school, such as Kahoot. In these privacy policies, it is stated that they collect personal data, and in some cases, these privacy policies only refer to the website, not to applications, as in the case of the privacy policy of Edelvives and as it seems also in the case of ANAYA when it refers to the beginning of the policy to “On the website, there are contact forms that require you to fill in your personal data in the fields provided for that purpose” and in the section “How have we obtained your data?” there is no reference made to applications.

In the URL ***URL.7 provided by the school, there is also no information about applications or about Google Workspace.

According to GOOGLE, it states in:

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***URL.6, each school is the most suitable to personalize the information they share with parents based on the actual use that the school makes of Google services.” (the underlining is ours).

11.

(...)

In the conclusions of the preliminary investigation report, reference is made to the contracts with various publishers, provided by the school and the dates of the same (on various days in October 2023):

“The contract provided in relation to the platform “SM EDUCAMOS” is dated 02/10/2023.

10. Regarding the CGA Grupo Anaya app, it is reported as blocked for students.

It provides a contract on data protection solely in relation to confidentiality and is dated 06/10/2023.

(...)

The contract provided with EDITORIAL LUIS VIVES is dated 05/10/2023.” (the underlining is ours).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Obligation Breached under Article 13 of the GDPR

Article 13 of the GDPR, “Information to be provided when personal data are obtained from the data subject,” states the following:

“Article 13 Information to be provided when personal data are obtained from the data subject

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1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data are obtained:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when personal data are obtained, with the following information necessary to ensure fair and transparent processing:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;

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- f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information pursuant to paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

Regarding the case examined in this sanctioning file, the information obtained during the preliminary investigation reflects that the information provided to the parents of the students of B.B.B. was insufficient.

1. Information regarding the use of the Chromebook device and Google Workspace for Education:

In relation to the use of said device, the complaint submitted by the father of one of the students at the school highlights this lack of information:

"(...) They have incorporated the Chromebook into the classroom. The Chromebook is our property since we purchased it. The device as well as the OS license, therefore, are our property. Until today, we have not received any information regarding the collection and processing of data that the school does when 'enrolling' the device in the school's domain. We have also not signed any authorization or anything similar. (...)

On September 14, I contacted my son's tutor to express our concern and I ask for a solution. The response that she forwards to me is as follows: 'The settings established for the school use apps and for the student's profile are indeed managed by the school for their proper functioning and to avoid problems. There is no other way to do it since there are functions that must be enabled for the application to work.

These settings only work from the ***PROFILE.1 of the student. If they log in from another profile or as guests, they can configure the privacy of the profile they enter at will.'

As I am not satisfied with the response, on Thursday, September 22, I write to the DPO of the school registered with the AEPD and I tell them among other things the following:

I would like them to provide me with as much information as possible on the subject and the doubts I raise, regarding how the collection of data is planned, responsible parties, transfers, etc., in relation to the use of Chromebooks since we have hardly received any information in this regard.

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(...)

As of October 2, I have not received a response either from the Delegate or from the school administration.

I believe that there is a breach on the part of the DPO regarding informing me about the collection of information and its processing (whether it is done, or not done, or if more data is needed to send me that information) since I have not received any response."

On the other hand, in the conclusions of the preliminary investigation report, it is indicated:

"The school informed the families by means of an email sent (letter). The letter included instructions and links to the privacy policies of some application providers, as well as a reference to the privacy policy of Edelvives.

Regarding Google Workspace for Education.

1. The school is responsible for the processing due to the contracting of Google Workspace for Education. GOOGLE is the processor. The data processed are Customer Data and Service Data.
2. According to statements from the school and the information published by GOOGLE on the internet, the latter is a processor in relation to Google Workspace for Education and the school is the data controller" (the underlining is ours).

"d. According to the 'Terms of Service for Google Workspace for Education', the customer is responsible for obtaining consents and providing the necessary notices. Specifically, regarding the use of 'Additional Products' and 'Third-Party Offers', the customer must obtain parental consent for users under 18 years of age as required by applicable legislation. Similarly, at:

***URL.6

it is emphasized that parents obtain consent for the use of additional services in the case of minors under 18 years of age" (the underlining is ours).

Furthermore, in the conclusions of the preliminary investigation report, it is highlighted:

"Regarding the information provided by the school.

In relation to Google Workspace and the Google user account opened by the school, there is an indication, according to the documentation from Google located at ***URL.6, that the user is provided with a note with 'important information' when they log in to their managed Google account. The content

of this note is unknown and has not been provided by the school nor has it referred to it. This article refers to

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information regarding data protection, although only related to service data.

The information on data protection in relation to Google Workspace is available at ***URL.7 but it is not clear how this information has been provided by the school to the families.

2. The only information transmitted to the families by the school is the letter referenced. In this letter, reference to privacy policies is made exclusively through a link, and it does not contain privacy information about Google Workspace (...)

In the URL ***URL.8 provided by the school, there is also no information about applications or Google Workspace.

According to GOOGLE, as stated in: ***URL.6, each school is best suited to customize the information they share with parents based on the actual use the school makes of Google services.” (the underlining is ours).

In conclusion, there is no evidence that the school provided the parents of the students with information regarding the data processing carried out by Google in accordance with the provisions of Article 13 of the GDPR, as a result of the use of Chromebook devices by their children, students of the school in question.

2. Information regarding the use of various educational applications:

In relation to these educational applications, the conclusions of the preliminary investigation report dated November 3, 2023, state:

“1. Regarding consent and the information provided to students and parents concerning the installation of the apps “CGA Anaya” and “Kahoot” on the students' Chromebooks, the school states that it is not the responsibility of the school to provide this information but rather that of the entities responsible for those apps.

(...)

3. The school has configured the forced installation of a list of third-party applications for the students, for which it has not demonstrated how it has provided information regarding data protection to the parents/students nor how it has collected consent for their installation or for access to device resources of those applications.

(...)

5. Justification has not been obtained, for each application, regarding the permissions to access device resources that have been granted by the school.

(...)

8. In the privacy policy of Santillana, provided to families, it states that they collect data that may allow identifying the user or make them identifiable. It also states that minors under 14 years old should not use their services without parental or guardian consent. The application Aula Virtual Santillana is installed on the students' Chromebooks.

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9. In the privacy policy of “SM Aprendizaje,” provided to families, it states that they collect data from students and parents such as identifying, contact, academic data, etc. It also states that they process information derived from browsing, use, and enjoyment of SM content. Data obtained from external sources may also be processed. (...)

The application “SM Aprendizaje” has been installed with permission from the students on the

Chromebooks.

11. The privacy policy of EDELVIVES, provided to families, refers to the website ***URL.3, not to the application. It is verified that the app “+EDELVIVES” redirects to the webpage ***URL.5 whose privacy policy requires parental consent for the use of the platform by minors. It also states that they process identifying and contact data among others.

However, in the legal notice of ***URL.5, it states that the use of the platform by minors is not permitted.” (the underlining is ours).

Furthermore, the preliminary investigation report highlights:

“Regarding the information provided by the school.

(...)

2. The only information transmitted to the families by the school is the letter referenced. In this letter, reference to privacy policies is made exclusively through a link, and it does not contain privacy information about Google Workspace nor about some applications used by the school, such as Kahoot. In these privacy policies, it states that they collect personal data and in some cases, these privacy policies only refer to the website, not to applications, as in the case of the privacy policy of Edelvives and as it seems also in the case of ANAYA when it refers to the principle of the policy to “On the website, there are contact forms that require you to fill in your personal data in the fields provided for that purpose” and in the section “How have we obtained your data?” there is no reference made to applications.

In the URL ***URL.7 provided by the school, there is also no information about applications (...).” (the underlining is ours)

Consequently, regarding the educational applications, there is also no evidence that the school provided sufficient and adequate information to the parents of the students.

No information was provided regarding the Kahoot application, and in other cases, a link to the publisher's website was provided, but not to the applications that were going to be used by the school.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is

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considers that the known facts could constitute an infringement, attributable to B.B.B., for violation of Article 13 of the GDPR.

III

Typification and qualification of the infringement of Article 13 of the GDPR

If confirmed, the aforementioned infringement of Article 13 of the GDPR could imply the commission of one of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;” In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in

accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.”

IV

Proposal for sanction for the infringement of Article 13 of the GDPR

Article 83.1 of the GDPR, “General conditions for the imposition of administrative fines,” provides:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are effective, proportionate, and dissuasive in each individual case.”

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It is also considered appropriate to graduate the sanction to be imposed in accordance with the following criteria established in Article 83.2 of the GDPR:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. According to the provisions of Article 83.2.k) of Regulation (EU)

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2016/679 may also take into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the

infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In an initial assessment, the following grading criterion is deemed concurrent:

-

Aggravating:

- Article 76.2 f) of the LOPDGDD:

The impact on the rights of minors: the lack of information regarding the data processed through Google Workspace for Education and the various educational applications affects the personal data of the students of Colegio Vera-Cruz Ikastetxea School, the vast majority of whom are minors.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for an initial penalty of €5,000.00 (five thousand euros).

V

Obligation breached in relation to Article 28 of the GDPR

Article 28, "Processor," of the GDPR establishes:

"1. When processing is to be carried out on behalf of a controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, in such a way that the processing will meet the requirements of this Regulation and ensure the protection of the rights of the data subject.

2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.

3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest;

b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

c) shall take all measures necessary to ensure compliance with Article 32;

d) shall respect the conditions referred to in paragraphs 2 and 4 for engaging another processor;

e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, for the controller to comply with its obligation to respond to requests for exercising the rights of data subjects laid down in Chapter III;

f) shall assist the controller in ensuring compliance with the obligations laid down in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the choice of the controller, shall delete or return all personal data after the end of the provision of processing services, and shall delete existing copies unless Union or Member State law requires storage of the personal data;

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h) shall make available to the controller all necessary information to demonstrate compliance with the obligations set out in this article, as well as to allow and contribute to the conduct of audits, including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of paragraph h) of the first paragraph, the processor shall immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or the Member States.

4. When a processor engages another processor to carry out certain processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 shall be imposed on this other processor, by means of a contract or other legal act established in accordance with Union or Member State law, in particular the provision of sufficient guarantees for the application of appropriate technical and organizational measures so that the processing is in compliance with the provisions of this Regulation. If that other processor fails to comply with its data protection obligations, the initial processor shall remain fully liable to the controller for compliance with the obligations of the other processor.

5. Adherence of the processor to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may be used as an element to demonstrate the existence of the sufficient guarantees referred to in paragraphs 1 and 4 of this article.

6. Without prejudice to the fact that the controller and the processor enter into an individual contract, the contract or other legal act referred to in paragraphs 3 and 4 of this article may be based, in whole or in part, on the standard contractual clauses referred to in paragraphs 7 and 8 of this article, even when they form part of a certification granted to the controller or processor in accordance with Articles 42 and 43.

7. The Commission may establish standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the examination procedure referred to in Article 93, paragraph 2.

8. A supervisory authority may adopt standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the consistency mechanism referred to in Article 63.

9. The contract or other legal act referred to in paragraphs 3 and 4 shall be in writing, including in electronic format.

10. Without prejudice to the provisions of Articles 82, 83, and 84, if a processor infringes this Regulation by determining the purposes and means of the processing, it shall be considered a controller with respect to that processing.”

In relation to the contracts entered into between B.B.B. and various publishers whose educational applications are used by the school and its students, the conclusions of the preliminary investigation report dated November 3, 2023 refer to several processing agreements provided by the school in response to the Inspector's request dated October 4, 2023 (the contract with Grupo Anaya refers exclusively to confidentiality):

“The contract provided in relation to the platform ‘SM EDUCAMOS’ is dated 02/10/2023.

10. Regarding the CGA Grupo Anaya app, it is noted to be blocked for students. It provides a contract on data protection only in relation to confidentiality and is dated 06/10/2023.

(...)

The contract provided with EDITORIAL LUIS VIVES is dated 05/10/2023.”
(the underlining is ours).

The contract with Kluppy, S.L. as processor is dated October 4, 2023.

As can be seen, the contracts provided by the school are dated October 2023. Therefore, they were entered into after the Inspector's request dated October 4, 2023.

Furthermore, it is noteworthy that the contract with EDITORIAL LUIS VIVES lists that publisher as the controller and not as the processor (as is the case in other instances), as well as the fact that it is

signed only by the representative of the school.

For all these reasons, in accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement consisting of the lack of a contract between the controller and the processor, as provided for in Article 28 of the GDPR, attributable to B.B.B. under the GDPR, which would constitute a violation of the aforementioned article.

VI

Classification and qualification of the infringement of Article 28 of the GDPR

If confirmed, the aforementioned infringement of Article 28 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR which under the heading "General conditions for the imposition of administrative fines" provides:

"4. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or,

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in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the data controller and the data processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Serious Infringements" of the LOPDGDD indicates:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

k) Entrusting the processing of data to a third party without the prior formalization of a contract or other written legal act containing the requirements set forth in Article 28.3 of Regulation (EU) 2016/679."

VII

Proposal for sanction for the infringement of Article 28 of the GDPR

Article 83.1, "General conditions for the imposition of administrative fines" of the GDPR, provides:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is effective, proportionate, and dissuasive in each individual case."

Furthermore, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

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- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, "Sanctions and corrective measures," provides:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continuous nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.

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- g) To appoint, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

In an initial assessment, the following grading criterion is deemed concurrent:

-

Aggravating:

- Article 76.2 f) of the LOPDGDD:

The impact on the rights of minors: considering that the vast majority of students at B.B.B. are minors, this Educational Center should have adopted all necessary measures to ensure that the processing of personal data of these minors was carried out with all guarantees. In this regard, the corresponding contracts with the data processors, which included their obligations, were essential.

However, the educational center only proceeded to hastily conclude these contracts with the publishers that provide the various educational applications after receiving a request from the Inspector asking for a copy of them.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for an initial penalty of €5,000.00 (five thousand euros).

VIII

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...”. The imposition of this measure is compatible with the penalty consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Such measures, the compliance of which should be evidenced within six months, would consist of:

- Informing the parents of the students of the school about the personal data processing being carried out by Google and the various publishers, obtaining their consent in cases where it is necessary.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for:

- The alleged infringement of Article 13 of the GDPR, classified in Article 83.5, and qualified as very serious for the purposes of prescription in Article 72.1 h) of the LOPDGDD.
- The alleged infringement of Article 28 of the GDPR, classified in Article 83.4, and qualified as serious for the purposes of prescription in Article 73 k) of the LOPDGDD.

SECOND: TO APPOINT C.C.C. as instructor and D.D.D. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure, in particular, the report of prior investigative actions dated November 3, 2023.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the penalty that may correspond would be, without prejudice to what results from the instruction:

- For the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of €5,000.00 (five thousand euros).
- For the alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €5,000.00 (five thousand euros).

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FIFTH: NOTIFY this agreement to B.B.B., with NIF ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document. If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €8,000.00 (eight thousand euros), resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed

sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €8,000.00 (eight thousand euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €6,000.00 (six thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (€8,000.00 (eight thousand euros) and €6,000.00 (six thousand euros)), they must make it effective by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are adhering.

Additionally, they must send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

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The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file of actions will occur; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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SECOND: On December 20, 2023, the respondent has proceeded to pay the sanction in the amount of €6,000, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted for submitting allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202212248, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER B.B.B. to notify the Agency within six months of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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